
Central Valley Regional Water Quality Control Board

10 April 2017

Kelly Strong
Bill & Kathy's, Inc.
Wastewater Treatment Facility
PO Box 83
Dunnigan, CA 95937

CERTIFIED MAIL
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NOTICE OF APPLICABILITY
GENERAL WASTE DISCHARGE REQUIREMENTS FOR
SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS
ORDER WQ 2014-0153-DWQ
FOR
KELLY STRONG
BILL & KATHY'S, INC. WASTEWATER TREATMENT FACILITY
YOLO COUNTY

Kelly Strong submitted a Report of Waste Discharge (RWD) dated 22 December 2016 describing the Bill & Kathy's Inc. Wastewater Treatment Facility (WWTF) in Yolo County. Additional information was submitted on 13 January 2017 and 21 March 2017. Based on the provided information, the wastewater treatment system and discharge is consistent with the requirements of the State Water Resources Control Board (State Water Board) *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems*, Order WQ 2014-0153-DWQ (General Order). This Notice of Applicability (NOA) provides notice that the General Order is applicable to the site and discharge as described below. You are hereby assigned Order WQ 2014-0153-DWQ-R5221 for the discharge. A copy of the General Order is enclosed and also available at:

http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf

You should familiarize yourself with the entire General Order and its attachments, which describe mandatory discharge and monitoring requirements. The General Order contains operational and reporting requirements by wastewater system type. Sampling, monitoring, and reporting requirements applicable to your treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached Monitoring and Reporting Program (MRP) 2014-0153-DWQ-R5221. The Discharger is responsible for all the applicable requirements that exist in the General Order and this NOA.

REGULATORY BACKGROUND

Prior to issuance of this NOA, the Bill & Kathy's Inc. WWTF was regulated by Waste Discharge Requirements (WDRs) Order 87-089, which was adopted on 22 May 1987. The Monitoring and Reporting Program required monthly monitoring of the wastewater ponds for pH and freeboard.

Effective upon rescission of Order 87-089 (expected to be at the 8/9 June 2017 Board meeting), the discharge shall be regulated pursuant to the General Order and this NOA.

This is an existing facility; therefore enrollment under the General Order is categorically exempt from the California Environmental Quality Act (CEQA) pursuant to California Code of Regulations, title 14, section 15301 which applies to ongoing or existing projects.

EXISTING FACILITY AND DISCHARGE DESCRIPTION

Kelly Strong (hereafter "Discharger") owns and operates the Bill & Kathy's, Inc. WWTF located approximately 0.2 miles south of the town of Dunnigan in Section 21, Township 12 North, Range 1 West, MDB&M in Yolo County. Surface water drainage is to Dunnigan Creek to the north and drains to the Colusa Basin Drainage Canal to the east. The site location is shown on Attachment A, which is attached hereto and is made part of this NOA by reference.

The WWTF is located in an area without a regional wastewater collection system; therefore, wastewater is collected and treated on-site. The service area serves a rural and transient population. The WWTF provides domestic wastewater treatment services to three areas as shown on Attachment A. Currently, wastewater is received from two fueling-stations (located at the southwest and southeast corner of the intersection of County Road 6 and 89) and a mini-mart (located at the northeast corner of the intersection of County Road 6 and 89). Domestic wastewater can also be received from an out-of-business restaurant located in the southwest corner of the intersection of County Road 6 and 89. Discharges of wastewater from recreational vehicles (motor homes) was originally accepted into the WWTF, however the Discharger no longer accepts this waste. Potable water is supplied by onsite private wells located within the three service areas.

The wastewater collection system consists of approximately 1/3 of a mile of pipeline, including gravity pipelines and a force main, and a lift station that was constructed sometime in or before 1976. The WWTF consists of two, clay-lined treatment ponds (Ponds 1 and 2) and an overflow basin as shown on Attachment A. Ponds 1 and 2 can receive wastewater from the lift station. Pipe connections and valves allow flow between Ponds 1 and 2 and from Pond 2 to the overflow basin when water levels are high. Estimated pond depths and volumes are shown in the table below.

Pond Name	Depth ¹ (feet)	Volume ² (mgal)
Pond 1	8.7	0.46
Pond 2	8.4	0.71
Overflow Basin	1.3	0.41
	Total:	1.57

¹ Approximate depth from the lowest elevation to the top of pond.

² Volume at 2-feet of freeboard from the lowest elevation to the top of pond.

The Discharger does not monitor flows into the ponds. Current wastewater flow was estimated to be 1,100 gallons per day (gpd) based on a flow rate of 430 gpd for fueling (gas) stations and 100 gpd per 1,000 square feet of retail space. The water balance submitted along with the RWD demonstrates adequate pond capacity under current domestic wastewater disposal conditions for a 100-year return period and average precipitation; however, the ponds and emergency basin have capacity for higher wastewater flows.

There are no groundwater wells to monitor underlying groundwater quality near the ponds. Depth to shallow groundwater in the Dunnigan area ranges between approximately 15 to 25 feet below ground surface. Residual solids are removed from the ponds as needed, and disposed of at permitted landfill.

SITE-SPECIFIC REQUIREMENTS AND EFFLUENT LIMITS

Note that the General Order contains prohibitions and specifications that apply to all wastewater treatment systems as well as those that only apply to specific treatment and/or disposal systems. The specific requirements and effluent limits for your treatment system are summarized below.

The wastewater treatment operator must be certified and familiar with the requirements contained in the General Order, this NOA, and the MRP.

Requirements by Wastewater System Type, Section B of General Order

B.1. All Wastewater Systems

This section applies in its entirety to the Bill & Kathy's, Inc. WWTF with the following site specific requirements.

B.1.a. Influent flow limits.

Treatment Unit	Flow Limit as Monthly Average ¹
Pond 1 and 2	1,500 gpd

- ¹ As determined by the total flow during the calendar month divided by the number of days in the month for each pond. Flow rate may be metered or estimated based on potable water supply meter reading or other approved method.

B.1.I. Wastewater system setbacks.

Equipment or Activity	Domestic Well	Flowing Stream ¹	Ephemeral Stream Drainage ²	Property Line	Lake or Reservoir ³
Septic Tank, Treatment System, & Collection System ⁴	150 ft. ⁵	50 ft. ⁶	50 ft.	5 ft. ⁶	200 ft. ⁷

- ¹ A flowing stream shall be measured from the ordinary high water mark established by fluctuations of water elevation and indicated by characteristics such as shelving, changes in soil character, vegetation, type, presence of litter or debris, or other appropriate means.

- ² Ephemeral Stream Drainage denotes a surface water drainage feature that flows only after rain or snow-melt and does not have sufficient groundwater seepage (baseflow) to maintain a condition of flowing surface water. The drainage shall be measured from a line that defines the limit of the ordinary high water mark (described in "a" above). Irrigation canals are not considered ephemeral streams drainage features. The ephemeral stream shall be a "losing stream" (discharging surface water to groundwater) at the proposed wastewater system site.

- ³ Lake or reservoir boundary measured from the high water line.

- ⁴ Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System addresses equipment located below ground or that impedes leak detection by routine visual inspection.

- ⁵ Setback established by the Onsite Wastewater Treatment System Policy, section 7.5.6.

- ⁶ Setback established by California Plumbing Code, Table K-1.

- ⁷ Setback established by the Onsite Wastewater Treatment System Policy, section 7.5.5.

B.5. Pond Systems

The WWTF utilizes a pond system; therefore this section applies in its entirety.

B.8. Sludge/Solids/Biosolids Disposal

The WWTF utilizes a pond system that will accumulate solid waste. To ensure optimal plant operation, solid waste shall be removed from the ponds; therefore this section applies in its entirety.

Effluent Limitations, Section D of General Order

The pond system is not subject to technology performance effluent limits for biochemical oxygen demand (BOD) and total suspended solids (TSS) as specified in Table 4 of the General Order because BOD and TSS limits are only applicable to land application or subsurface disposal. In addition, an effluent nitrate limit is not necessary because monthly average flows will be less than 20,000 gpd.

Technical Report Preparation Requirements, Provisions Section E.1 of General Order

The following technical reports shall be submitted as described below:

1. **By 1 August 2017**, the Discharger shall submit a *Spill Prevention and Emergency Response Plan* (Response Plan) consistent with the requirements of General Order Provision E.1.a.
2. **By 1 August 2017**, the Discharger shall submit a *Sampling and Analysis Plan* (SAP) consistent with the requirements of General Order Provision E.1.b. In addition, the SAP shall describe the method of compliance with the influent flow monitoring requirement and identify the facility's certified operator.
3. **By 1 October 2017**, the Discharger shall submit a *Sanitary Sewer System and Wastewater Treatment Facility Evaluation Report*. The sanitary sewer system consists of any sewer pipe, manholes, lift station, and/or other conveyance system elements that direct raw sewage to the treatment facility. The report shall describe the routine maintenance program, control measures, and/or management practices taken to adequately maintain, operate, and prevent overflows from its sanitary sewer system and confirm the integrity of the system. The report shall summarize the most recent sewer system inspection, evaluation, and/or repairs performed over the last 10 years. The report shall also include information regarding pond and emergency basin construction such as but not limited to as-builts or construction completion reports, that certifies that the ponds and emergency basin were constructed as designed.
 - a. If an inspection or evaluation of the sewer system has not occurred in the last 10 years, the Discharger shall conduct a sewer system inspection of the system. By **1 December 2017**, the Discharger shall submit a *Sanitary Sewer System Inspection Report* that describes the inspection, evaluates the system, and certifies any repairs made.
4. **Within 90 days prior** to any removal, drying, treatment, or disposal of sludge for pond maintenance, the Discharger shall submit and implement a *Sludge Management Plan* consist with the requirements of General Order Provision E.1.c.

MONITORING AND REPORTING PROGRAM

The Discharger shall comply with MRP 2014-0153-DWQ-R5221, which is attached hereto and made part of this NOA by reference.

ENFORCEMENT

Please review this NOA carefully to ensure that it completely and accurately reflects the discharge. Discharge of wastes other than those described in this NOA is prohibited. Prior to allowing changes to the wastewater strength or generation rate, or to the method of waste disposal, you must contact the Central Valley Regional Water Board to determine if submittal of an RWD is required.

The waste, subject to the terms and conditions of WQ 2014-0153-DWQ-R5221, is discharged to property owned by Kelly Strong. Kelly Strong will maintain exclusive control over the discharge,

and therefore is primarily responsible for compliance with this NOA, MRP, and General Order, with all attachments. Failure to comply with the requirements in the General Order or this NOA could result in an enforcement action as authorized by provisions of the California Water Code.

ANNUAL FEES

Staff has determined the discharge is a threat to water quality and complexity rating of 3-B. The annual fee corresponding to a threat to water quality and complexity of 3-B is currently \$4,699. The fee is due and payable on an annual basis until coverage under the General Order is formally rescinded. Please note that the annual fees are reviewed each year and may change. If the wastewater discharge ceases, you must provide written notice so that we can terminate coverage under the General Order and no longer bill you.

DOCUMENT SUBMITTAL

All monitoring reports and other correspondence should be converted to searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50 MB should be emailed to: centralvalleysacramento@waterboards.ca.gov.

To ensure that your submittal is routed to the appropriate staff person, the following information should be included in the body of the email or any documentation submitted to the mailing address for this office:

Facility Name: Bill & Kathy's, Inc. WWTF, Yolo County		
Program: Non-15 Compliance	Order: 2014-0153-DWQ-R5221	CIWQS Place ID: 209595

Documents that are 50 MB or larger should be transferred to a CD, DVD, or flash drive and mailed to:

Central Valley Regional Water Quality Control Board
ECM Mailroom
11020 Sun Center Drive, Suite 200
Rancho Cordova, CA 95670

Now that the Notice of Applicability has been issued, the Board's Compliance and Enforcement section will take over management of your case. Brendan Kenny is your new point of contact for any questions about the General Order. If you find it necessary to make a change to your permitted operations, Brendan will direct you to the appropriate Permitting staff. You may contact Brendan at (916) 464-4635 or at bkenny@waterboards.ca.gov


PAMELA C. CREEDON For
Executive Officer

Enc and Cc: See next page

Enc: Attachment A, Site Location Map
Monitoring and Reporting Program 2014-0153-DWQ-R5221
Water Quality Order WQ 2014-0153-DWQ

Cc w/out enc: Timothy O'Brien, State Water Resources Control Board, Sacramento
Yolo County Environmental Health Department, Woodland
Brian Delemos, Laugenour and Meikle, Woodland